

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SUMMONS

MARCUS REID,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, DETECTIVE ANDERSON
THIMOTE, Tax No. 957399, SERGEANT EDWIN
SIMON, Tax No. 937543, DETECTIVE TIFFANY
ORTIZ, Tax No. 944863, DETECTIVE TIFFANY
GONZALEZ, Tax No. 955957, and POLICE OFFICER
MARTIN ORTIZ, Tax No. 949428,

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 6, 2024

Yours, etc.

David M. Hazan
JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE ANDERSON THIMOTE, Tax No. 957399, 71st Precinct Detective Squad
SERGEANT EDWIN SIMON, Tax No. 937543, Detective Squad at Joint Terrorism
Task Force
DETECTIVE TIFFANY ORTIZ, Tax No. 944863, 71st Precinct Detective Squad
DETECTIVE TIFFANY GONZALEZ, Tax No. 955957, 71st Precinct Detective
Squad
POLICE OFFICER MARTIN ORTIZ, Tax No. 949428, 71st Precinct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MARCUS REID,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE ANDERSON
THIMOTE, Tax No. 957399, SERGEANT EDWIN
SIMON, Tax No. 937543, DETECTIVE TIFFANY
ORTIZ, Tax No. 944863, DETECTIVE TIFFANY
GONZALEZ, Tax No. 955957, and POLICE OFFICER
MARTIN ORTIZ, Tax No. 949428,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff MARCUS REID, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on February 6, 2021, at approximately 4:40 pm, plaintiff was lawfully present at 88 Visitation Place, Brooklyn, New York because he contracted COVID and was being quarantined, at which time defendants falsely arrested him, without possessing objective facts to establish probable cause to believe plaintiff violated the law or committed a crime. Defendants falsely arrested plaintiff for allegedly committing a robbery that occurred on October 10, 2020, in the vicinity of 378 Utica Avenue, Brooklyn, New York. Although the defendant officers did not possess any objective evidence to establish probable cause to believe plaintiff had any involvement in the Robbery, on February 6, 2021, at approximately 4:40 pm defendants falsely arrested plaintiff at 88 Visitation Place, Brooklyn, New York, while plaintiff was ill and being quarantined because he contracted COVID. The defendant officers falsely accused plaintiff of committing the Robbery almost 4 months earlier on October 10, 2020, even though the officers did not possess any objective facts that established probable cause to believe plaintiff committed the Robbery or violated the law in any manner. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers possess objective facts that established probable cause to believe plaintiff committed a crime or violated the law. Plaintiff was unlawfully searched, fingerprinted,

and photographed while he was trying to recover from COVID. The defendants provided the Kings County District Attorney's Office with false, misleading, and incomplete evidence that defendants purportedly used to establish probable cause to arrest plaintiff and charge him with crimes he did not commit. Plaintiff was unlawfully detained in quarantine at Red Hook Community Court because he was ill with COVID until he was arraigned via video on February 7, 2021 at approximately 6:00 pm and he was charged with committing crimes he did not commit and for which defendants lacked probable cause to accuse him of committing, including but not limited to Menacing, Coercion in the Third Degree, Petit Larceny, Grand Larceny in the Third Degree, Robbery in the First, Second, and Third Degrees, Criminal Possession of Stolen Property, and Harassment in the Second Degree. At arraignment bail was set at \$30,000 and plaintiff was unable to post bail. Therefore, on February 7, 2021, at approximately 6:00 pm plaintiff was remanded into New York City Department of Correction custody and transported to Riker's Island. Plaintiff was unlawfully detained in deplorable conditions at Riker's Island and the facility was not staffed with a reasonable number of Correction Officers to ensure safety and order at the facilities on Riker's Island while plaintiff was detained. Plaintiff was assaulted, battered, and physically injured by other prisoners, often from gangs that were asserting control over the housing area plaintiff was assigned to live in, on multiple occasions. On one occasion, prisoners dropped a large water jug on plaintiff's head, causing plaintiff to suffer a large laceration on his head and he required 12 Staples on his head to close the wound. The experience of being wrongfully detained on Riker's Island for 4 months and constantly fearing that he would be attacked by other prisoners was a terrifying experience for plaintiff and caused him to suffer severe and permanent emotional trauma and psychological injuries. Plaintiff was maliciously prosecuted based upon false, misleading, and incomplete evidence and allegations provided by the defendant officers. Plaintiff was required to appear in Kings County Criminal Court on several occasions to address the false charges brought against him by defendants. Plaintiff endured a criminal prosecution wherein he was charged with committing serious felony offenses that he did not commit, for approximately four months before all charges were dismissed and sealed in their entirety on May 26, 2021, after the Court granted a motion to dismiss and seal the charges filed against plaintiff in their entirety. The criminal prosecution terminated in plaintiff's favor when the charges were dismissed and sealed on May 26, 2021. Plaintiff was released from custody and freed from suffering under the inhumane and deplorable conditions at Riker's Island on May 26, 2021, at approximately 7:00 pm. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully frisked, searched, interrogated, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff MARCUS REID is a resident of the state of New York.

3. Defendant DETECTIVE ANDERSON THIMOTE, Tax No. 957399, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant DETECTIVE ANDERSON THIMOTE, Tax No. 957399, was at all times relevant herein, assigned to the 71st Precinct Detective Squad.

5. Defendant DETECTIVE ANDERSON THIMOTE, Tax No. 957399, is being sued in his individual and official capacity.

6. Defendant SERGEANT EDWIN SIMON, Tax No. 937543, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant SERGEANT EDWIN SIMON, Tax No. 937543, was at all times relevant herein, assigned to the 71st Precinct Detective Squad and is presently assigned to the Detective Squad at the Joint Terrorism Task Force.

8. Defendant SERGEANT EDWIN SIMON, Tax No. 937543, is being sued in his individual and official capacity.

9. Defendant DETECTIVE TIFFANY ORTIZ, Tax No. 944863, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant DETECTIVE TIFFANY ORTIZ, Tax No. 944863, was at all times relevant herein, assigned to the 71st Precinct Detective Squad.

11. Defendant DETECTIVE TIFFANY ORTIZ, Tax No. 944863, is being sued in his individual and official capacity.

12. Defendant DETECTIVE TIFFANY GONZALEZ, Tax No. 955957, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant DETECTIVE TIFFANY GONZALEZ, Tax No. 955957, was at all times relevant herein, assigned to the 71st Precinct Detective Squad.

14. Defendant DETECTIVE TIFFANY GONZALEZ, Tax No. 955957, is being sued in her individual and official capacity.

15. Defendant POLICE OFFICER MARTIN ORTIZ, Tax No. 949428, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant POLICE OFFICER MARTIN ORTIZ, Tax No. 949428, was at all times relevant herein, assigned to the 71st Precinct.

17. Defendant POLICE OFFICER MARTIN ORTIZ, Tax No. 949428, is being sued in her individual and official capacity.

18. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

19. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On February 6, 2021, at approximately 4:40 pm, plaintiff was lawfully present at 88 Visitation Place, Brooklyn, New York because he contracted COVID and was being quarantined, at which time defendants falsely arrested him, without possessing objective facts to establish probable cause to believe plaintiff violated the law or committed a crime.

23. Defendants falsely arrested plaintiff for allegedly committing a robbery that occurred on October 10, 2020, in the vicinity of 378 Utica Avenue, Brooklyn, New York.

24. By way of background, a crime victim reported that he was robbed at gun point several blocks away from 378 Utica Avenue, Brooklyn, New York.

25. The crime victim alleged that the perpetrator forcibly led the crime victim and his son to Montgomery Street, between Utica Avenue and Schenectady after the robbery, and met 6 individuals who approached the crime victim and ordered the crime victim to come with them and withdraw money from an ATM machine.

26. The crime victim alleges that the 6 individuals led him at gunpoint to a grocery store located at 378 Utica Avenue, Brooklyn, New York and the crime victim withdrew \$1020.00 from the ATM located in the store and handed the money to the 6 individuals.

27. The 6 individuals left the scene with the crime victim's money.

28. The cashier in the grocery store witnessed the 6 individuals robbing the crime victim and heard the crime victim asking for someone to call the police.

29. The cashier called 911 to report the incident and defendants responded to the scene to take a report.

30. Defendants reviewed video footage from the grocery store and identified plaintiff as an individual in the grocery store while the crime victim was robbed.

31. Defendants identified plaintiff as an individual who was standing near the cashier and was not near the crime victim or the ATM machine the crime victim withdrew money from.

32. At no time relevant herein did the crime victim identify plaintiff as one of the individuals who robbed him.

33. At no time relevant herein did the cashier at the grocery store identify plaintiff as an individual who was involved in the robbery of the crime victim. To the contrary, the cashier informed the defendants that plaintiff had no involvement in the robbery.

34. The sole allegation made by defendants against plaintiff was that plaintiff could allegedly be heard on the surveillance video from the grocery store telling the cashier not to call 911.

35. Defendants did not possess any objective evidence that plaintiff took any other actions related to the robbery of the crime victim, nor did defendants possess any evidence that plaintiff in any way solicited, requested, commanded, or intentionally aided the perpetrators of the crime to rob the crime victim.

36. Additionally, defendants possessed surveillance footage from the grocery store clerk was made prior to the time the alleged Robbery of the crime victim occurred, and at the time of the Robbery plaintiff could clearly be seen on the video outside of the store, at least 50 feet away from the incident in question.

37. Although the defendant officers did not possess any objective evidence to establish probable cause to believe plaintiff had any involvement in the Robbery, on February 6, 2021, at approximately 4:40 pm defendants falsely arrested plaintiff at 88 Visitation Place, Brooklyn, New York, while plaintiff was ill and being quarantined because he contracted COVID.

38. The defendant officers falsely accused plaintiff of committing the Robbery almost 4 months earlier on October 10, 2020, even though the officers did not possess any objective facts that established probable cause to believe plaintiff committed the Robbery or violated the law in any manner.

39. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers possess objective facts that established probable cause to believe plaintiff committed a crime or violated the law.

40. Plaintiff was unlawfully searched, fingerprinted, and photographed while he was trying to recover from COVID.

41. The defendants provided the Kings County District Attorney's Office with false, misleading, and incomplete evidence that defendants purportedly used to establish probable cause to arrest plaintiff and charge him with crimes he did not commit.

42. Plaintiff was unlawfully detained in quarantine at Red Hook Community Court because he was ill with COVID until he was arraigned via video on February 7, 2021 at approximately 6:00 pm and charged with committing crimes he did not commit and for which defendants lacked probable cause to accuse him of committing, including but not limited to Menacing, Coercion in the Third Degree, Petit Larceny, Grand Larceny in the Third Degree, Robbery in the First, Second, and Third Degrees, Criminal Possession of Stolen Property, and Harassment in the Second Degree.

43. At arraignment bail was set at \$30,000 and plaintiff was unable to post bail.

44. Therefore, on February 7, 2021, at approximately 6:00 pm plaintiff was remanded into New York City Department of Correction custody and transported to Riker's Island.

45. Plaintiff was unlawfully detained in deplorable conditions at Riker's Island and the facility was not staffed with a reasonable number of Correction Officers to ensure safety and order at the facilities on Riker's Island while plaintiff was detained.

46. Plaintiff was assaulted, battered, and physically injured by other prisoners, often from gangs that were asserting control over the housing area plaintiff was assigned to live in, on multiple occasions.

47. On one occasion, prisoners dropped a large water jug on plaintiff's head, causing plaintiff to suffer a large laceration on his head and he required 12 Staples on his head to close the wound.

48. The experience of being wrongfully detained on Riker's Island and constantly fearing that he would be attacked by other prisoners was a terrifying experience for plaintiff and caused him to suffer severe and permanent emotional trauma and psychological injuries.

49. Plaintiff was maliciously prosecuted based upon false, misleading, and incomplete evidence and allegations provided by the defendant officers.

50. Plaintiff was required to appear in Kings County Criminal Court on several occasions to address the false charges brought against him by defendants.

51. Plaintiff endured a criminal prosecution wherein he was charged with committing serious felony offenses that he did not commit, for approximately four months before all charges were dismissed and sealed in their entirety on May 26, 2021, after the Court granted a motion to dismiss and seal the charges filed against plaintiff in their entirety.

52. The criminal prosecution terminated in plaintiff's favor when the charges were dismissed and sealed on May 26, 2021.

53. Plaintiff was released from custody and freed from suffering under the inhumane and deplorable conditions at Riker's Island, on May 26, 2021, at approximately 7:00 pm.

54. The officers provided the DA's Office with false, misleading, and incomplete evidence to support their purported basis for arresting plaintiff and charging him with crimes.

55. The false allegations made by the officers formed the basis for the crimes he was charged with committing at arraignment, without probable cause or legal justification.

56. At no time relevant herein did plaintiff commit a crime, nor did the police officers possess an objective factual basis to establish probable cause to believe he committed a crime or violated the law.

57. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

58. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully frisked, searched, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

59. Plaintiff suffered extreme emotional, psychological, and physical injuries while he was unlawfully detained on Riker's Island.

60. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

61. Defendants falsely arrested and maliciously prosecuted plaintiff, without probable cause or legal justification.

62. Defendants violated plaintiff's right to due process when they provided the District Attorney's Office with false, misleading, and incomplete evidence which formed the basis for initiating the criminal prosecution against plaintiff.

63. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, questioned, frisked, falsely arrested, and maliciously prosecuted plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

64. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficiently punish defendants for the misconduct they previously engaged in.

65. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

66. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

67. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

68. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

69. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

70. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

71. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully searched, frisked, questioned, seized, denied due process, falsely arrested and falsely imprisoned, and maliciously prosecuted, without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

73. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

75. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

78. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The illegal approach, pursuit, stop and search inside plaintiff's pockets and underneath his clothing, employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

80. Defendants lacked probable cause to search plaintiff.

81. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

84. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

86. Defendants commenced and continued a criminal proceeding against plaintiff.

87. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

88. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

89. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Due Process/ Right to a Fair Trial

91. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 90 with the same force and effect as if fully set forth herein.

92. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

93. Defendants filled out false and misleading police reports and forwarded them to the Kings County Criminal Court.

94. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

95. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Failure to Intervene

97. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

99. Defendants failed to intervene to prevent the unlawful conduct described herein.

100. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

102. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. Plaintiff was unlawfully searched, interrogated, frisked, falsely arrested plaintiff, and denied plaintiff then right to due process without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

104. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

105. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and

unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

106. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

107. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

108. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

109. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

110. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

111. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

112. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

113. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

114. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff MARCUS REID demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 6, 2024

By: David M. Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 6, 2024

David M Hazan

DAVID M. HAZAN